ſtatute 3 Geo. II. c. 25. (before referred to) hath not in civil cauſes undeſignedly abridged this privilege of foreigners, by the poſitive directions therein given concerning the manner of impanelling jurors, and the perſons to be returned in ſuch panel. So that the court might probably heſitate, eſpecially in the caſe of *ſpecial* juries, how far it has now a power to direct a panel to be returned *de medietate linguae*, and to alter the method preſcribed for ſtriking a ſpecial jury, or balloting for common jurymen.

CHALLENGES to the polls, *in capita*, are exceptions to particular jurors; and ſeem to anſwer the *recuſatio judicis* in the civil and canon laws: by the conſtitutions of which a judge might be refuſed upon any ſuſpicion of partiality [w]. By the laws of England alſo, in the times of Bracton [x] and Fleta [y], a judge might be refuſed for good cauſe; but now the law is otherwiſe, and it is held that judges or juſtices cannot be challenged [z]. For the law will not ſuppoſe a poſſibility of biaſs or favour in a judge, who is already ſworn to adminiſter impartial juſtice, and whoſe authority greatly depends upon that preſumption and idea. And ſhould the fact at any time prove flagrantly ſuch, as the delicacy of the law will not preſume beforehand, there is no doubt but that ſuch miſbehaviour would draw down a heavy cenſure from thoſe, to whom the judge is accountable for his conduct.

BUT challenges to the polls of the jury (who are judges of fact) are reduced to four heads by ſir Edward Coke [a]: *propter honoris reſpectum*; *propter defectum*; *propter affectum*; and *propter delictum*.

1. *Propter honoris reſpectum*; as if a lord of parliament be impanelled on a jury, he may be challenged by either party, or he may challenge himſelf.

[w] *Cod.* 3. 1. 16. *Decretal. l.* 2. *t.* 28. *c.* 36.
[x] *l.* 5. *c.* 15.
[y] *l.* 6. *c.* 37.
[z] Co. Litt. 294.
[a] 1 Inſt. 156.